

SENATE No. 63

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to establishing a food justice frontline.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/18/2025</i>

SENATE No. 63

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 63) of Patricia D. Jehlen for legislation to establish a food justice frontline. Agriculture.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 507 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to establishing a food justice frontline.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws, as appearing in the 2022 Official Edition, are hereby
2 amended by inserting after Chapter 128A the following chapter:

3 Chapter 128B: Food Justice Frontline Program

4 Section 1. As used in this section, the following words shall have the following
5 meanings, unless the context clearly requires otherwise.

6 “Department”, the Massachusetts Department of Agricultural Resources.

7 “Food Security Job”, any financially compensated work involving food production, food
8 distribution, food preparation, or food delivery for food insecure Massachusetts residents.

“Nonprofit Food Security Organization”, a nonprofit corporation or other nonprofit organization that has programs which (1) provide land to low- and moderate-income individuals for agricultural production, or (2) has programs which provide Food Security Jobs to low- and moderate-income individuals, including, but not limited to, food production jobs, food distribution jobs, food preparation jobs, and food delivery jobs.

“Overburdened Community” means a Census Block Group in Massachusetts that meets both of the following criteria:

(1) Is at or above the 75th statewide percentile for at least 2 of the following Environmental Indicators on the most recent available United States Environmental Protection Agency’s EJSCREEN Assessment: (a) PM 2.5; (b) Ozone; (c) NATA Diesel PM; (d) NATA Cancer Risk; (e) NATA Respiratory Hazard Index; (f) Traffic Proximity; (g) Lead Paint Indicator; (h) Superfund Proximity; (i) Risk Management Plan Facilities Proximity; (j) Hazardous Waste Proximity; and (k) Wastewater Discharge Indicator; and

(2) has a median household income, as calculated by the US Census Bureau, that is no greater than 80% of the statewide median household income, as calculated by the US Census Bureau.

Section 2. (a) The Department shall create the Food Justice Frontline Program.

(b) The purpose of the Food Justice Frontline Program is to fund Nonprofit Food Security Organizations to enable them to create new Food Security Jobs and provide those jobs to individuals living within Overburdened Communities. The Food Justice Frontline Program is intended to create jobs as rapidly as possible after the enactment of this Act, in order to immediately address the widespread food insecurity throughout Massachusetts.

31 (c) The Department shall create an application with which Nonprofit Food Security
32 Organizations may apply to receive a financial grant, not to exceed \$500,000. This application
33 shall be known as the Food Justice Frontline Funding Application.

34 (d) No Food Justice Frontline Funding Application shall be considered complete unless
35 the applicant: (1) Describes, in detail, the program or programs which the Nonprofit Food
36 Security Organization operates that provide land or Food Security Jobs to low-income
37 Massachusetts residents; and (2) Describes, in detail, the ways in which the Nonprofit Food
38 Security Organization would use funding to create jobs for individuals living within
39 Overburdened Communities.

40 (e) The Department shall establish regulations and guidelines regarding the process and
41 criteria for approval of a Food Justice Frontline Funding Application. These regulations and
42 guidelines shall prioritize Nonprofit Food Security Organizations which demonstrate a clear and
43 credible plan to use the funding to quickly create Food Security Jobs for individuals living within
44 Overburdened Communities.

45 (f) Nonprofit Food Security Organizations which receive a financial grant under the Food
46 Justice Frontline Program must use the entirety of the financial grant money on programs which
47 will create Food Security Jobs for individuals living within Overburdened Communities. These
48 jobs must pay an hourly wage of not less than the quotient of one divided by two thousand and
49 four hundred ($1/2,400$), multiplied by the statewide per capita income, as calculated by the
50 United States Census Bureau.

51 (g) A Nonprofit Food Security Organization may apply for multiple financial grants
52 under the Food Justice Frontline Program.

53 Section 3. The Department shall have the power enter contracts, hire employees, hire
54 contractors, promulgate rules and regulations, levy fines, adjudicate administrative cases, or take
55 any other lawful action in order to implement the Food Justice Frontline Program.

56 SECTION 2. Chapter 128 of the General Laws is hereby amended by inserting after
57 section 2E the following section:

58 Section 2F. (a) The Department of Transitional Assistance and the Executive Office of
59 Housing and Economic Development shall establish a new program designed to increase public
60 awareness of the availability of the Supplemental Nutrition Assistance Program, the Healthy
61 Incentives Program, and other similar food access programs for low-income Massachusetts
62 residents and food insecure Massachusetts residents. In order to carry out this program, the
63 Executive Office of Housing and Economic Development shall work with Massachusetts
64 residents under the age of eighteen to promote public awareness of the Supplemental Nutrition
65 Assistance Program. The Executive Office of Housing and Economic Development shall
66 compensate these Massachusetts residents with a stipend of not less than 15 dollars for every
67 hour in which they work to promote public awareness of the Supplemental Nutrition Assistance
68 Program. The Department of Transitional Assistance and the Executive Office of Housing and
69 Economic Development shall prioritize working with Massachusetts residents who live in
70 Overburdened Communities or Census Block Groups with a median household income that is
71 below 80% of the statewide median household income. This program shall be conducted in
72 multiple languages in order to ensure that it benefits both English-speaking families and non-
73 English speaking families.

74 (b) The Department of Transitional Assistance and the Executive Office of Housing and
75 Economic Development shall apply for any available federal programs including, but not limited
76 to, the Food Insecurity Nutrition Incentive Grants administered by the United States Department
77 of Agriculture to provide matching benefits to be deposited in the Fund.

78 (c) The Department of Transitional Assistance and the Executive Office of Housing and
79 Economic Development shall promulgate rules and regulations to implement these programs.